

THE ANTIQUITIES ACT, 1975
(VII of 1976)

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TEXT

¹THE ANTIQUITIES ACT, 1975
(VII of 1976)

[14th January, 1976]

An
Act

*to repeal and re-enact the law relating to the preservation and protection of
antiquities*

WHEREAS it is expedient to repeal and re-enact the law relating to the preservation and protection of antiquities and to provide for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Antiquities Act, 1975.

(2) It extends to the whole of ²[Punjab].

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) “Advisory Committee” means the Advisory Committee constituted under section 3;

³[(b) ‘ancient’, in relation to an antiquity, means an antiquity which has been in existence for a period of not less than seventy-five years;]

(c) “antiquity” means—

(i) any ancient product of human activity, movable or immovable illustrative of art, architecture, crafts, custom, literature, morals, politics, religion, warfare or science or of any aspect of civilization or culture,

(ii) any ancient object or site of historical, ethnographical, anthropological, military or scientific interest,

(iii) any national monument, and

¹For Statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt. HI, p. 1541.

This Act has been published in the Gazette of Pakistan(Extraordinary), Part I, dated14.1.1976, pages 26-37.

The Act has been applied to Provincially Administered Tribal Areas of N.W.F.P. with certain modifications, see Notification. No. 14/43-505(II) (H.D)/80. dt. 29-1-81, see Gaz. of N.W.F.P, Ext., p.

²Substituted for the word “Pakistan” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

³Substituted by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.3.

- (iv) any other object or class of such objects declared by the ⁴[Government], by notification in the official Gazette, to be an antiquity for the purposes of this Act;
- (d) “dealer” means a person engaged in the business of buying and selling antiquities; and “deal in antiquities” means to carry on such business;
- (e) ⁵“[Director-General]” means the ⁶[Director-General] of Archaeology, Government of ⁷[Punjab], and includes an officer authorized by him to exercise or perform all or any of the power or functions of the ⁸[Director-General] under this Act;
- ⁹[(f) “export” means taking anything out of the Punjab by land or air;]
- ¹⁰[(ff) “Government” means Government of the Punjab;]
- (g) “immovable antiquity” means an antiquity of any of the following descriptions, namely:—
 - (i) any archaeological deposit on land or under water,
 - (ii) any archaeological mound, tumulus, burial place or place of internment, or any ancient garden, structure, building, erection or other work of historical, archaeological, military or scientific interest,
 - (iii) any rock, cave or other natural object of historical, archaeological, artistic or scientific interest or containing sculpture, engraving, inscription or painting of such interest, and includes—
 - (1) any gate, door, window, paneling, dado, ceiling, inscription, wall-painting, wood work, metal work or sculpture or any other thing which is attached or fastened to an immovable antiquity;
 - (2) the remains of an immovable antiquity;
 - (3) the site of an immovable antiquity;
 - (4) such portion of land or water adjoining the site of an immovable antiquity as are reasonably required for fencing or covering or otherwise preserving such antiquity;

⁴Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁵Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁶Substituted *ibid.*

⁷Substituted for the word “Pakistan” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁹Substituted by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.3(a).

¹⁰Inserted *ibid.*, s.3(b).

- (5) the reasonable means of access to, an convenient inspection of an immovable antiquity; and
- (6) any urban site, street, group of buildings or public square of special value which the ¹¹[Government], being of the opinion that its preservation is a matter of public interest by reason of its arrangement, architecture or materials of construction, by notification in the official Gazette, declares to be an immovable antiquity for the purposes of this Act;
- (h) “national monument” means any building, structure, erection, place of internment, garden, portion of land or any other place or thing of national importance as may be determined and notified as such from time to time by the ¹²[Government] in consultation with the Advisory Committee;
- (i) “owner” includes—
 - (i) any person legally competent to act on behalf of the owner, when by reason of infancy or other disability the owner is unable to act;
 - (ii) a joint owner invested with powers of management on behalf of himself and other joint owners and the successor in interest of such owner; and
 - (iii) any manager or trustee exercising the powers of management and the successor in office of such manger or trustee;
- (j) “protected antiquity” means an antiquity which is declared under section 10 to be a protected antiquity; and
- (k) “rules” means rules made under this Act.

3. Advisory Committee.— ¹³[(1) For the purposes of this Act, the Government shall, by notification in the official Gazette, constitute an Advisory Committee consisting of archaeologists, architects, historians and members of the provincial Assembly of the Punjab and the Director General shall be the Chairman of the Advisory Committee.]

(2) No act or proceeding of the Advisory Committee shall be deemed to be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Committee.

4. Dispute as to whether any product, etc., is an antiquity.— If any question arises whether any product, object or site is an antiquity within the meaning of this

¹¹Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

¹²Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

¹³Substituted by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.4. Earlier substituted by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.4.

Act it shall be referred to the ¹⁴[Government] which shall, after consultation with the Advisory Committee, decide the same; and the decision of the ¹⁵[Government] shall be final.

5. Custody, preservation, etc., of certain antiquities.— (1) Where the ¹⁶[Director-General] receives any information or otherwise has the knowledge of the discovery or existence of an antiquity of which there is no owner, he shall, after satisfying himself as to the correctness of the information or knowledge, take such steps as he may consider necessary for the custody, preservation and protection of the antiquity.

(2) Where the owner of an antiquity is not traceable, the ¹⁷[Director-General] may, with the approval of the ¹⁸[Government], take such steps as he may consider necessary for the custody, preservation and protection of the antiquity.

¹⁹[5-A. Accidental discovery of antiquity to be reported to ²⁰[Director-General].—
(1) Whoever discovers, or finds accidentally, any movable antiquity shall inform the ²¹[Director-General] within seven days of its being discovered or found and preserve it for the period specified in subsection (2).

(2) If, within seven days of his being informed under subsection (1) of the discovery of a movable antiquity or of a movable antiquity having been found, the ²²[Director-General] decides to take over the antiquity for purposes of custody, preservation and protection, the person discovering or finding it shall hand it over to the ²³[Director-General] or a person authorized by him in writing.

²⁴[(3) Where the Director General decides to take over an antiquity, he may pay to the person by whom it is handed over to him such cash reward as the Advisory Committee may deem fit.]

(4) If a person who discovers or finds any movable antiquity contravenes the provisions of subsection (1) or subsection (2), he shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both

¹⁴Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

¹⁵Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

¹⁶Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

¹⁷Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

¹⁸Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

¹⁹Substituted by the Antiquities (Amendment) Ordinance, 1978 (XLII of 1978); and published in the Gazette of Pakistan (Extraordinary), Part I, dated 5.11.1978, s.2.

²⁰Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²¹Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²²Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²³Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²⁴Substituted *ibid.*, s.5.

and the Court convicting such person shall direct that the antiquity in respect of which such contravention has taken place shall stand forfeited to the ²⁵[Government].]

6. Power of entry, inspection, etc.— (1) The ²⁶[Director-General] may, after giving reasonable notice, enter into, inspect and examine any premises, place or area which or the sub-soil of which he may have reason to believe to be, or to contain an antiquity and may cause any site, building, object, or any antiquity or the remains of any antiquity in such premises, place or area to be photographed, copied or reproduced by any process suitable for the purpose.

(2) The owner or occupier of the premises, place or area shall afford all reasonable opportunity and assistance to the ²⁷[Director-General] for the purpose of sub-section (1).

(3) No Photograph, copy or reproduction taken or made under or for the purposes of sub-section (1) shall be sold or offered for sale except by or with the consent of the owner of the object of which the photograph, copy or reproduction has been taken or made.

(4) Where substantial damage is caused to any property as a result of the inspection under sub-section (1), the ²⁸[Director-General] shall pay to the owner thereof reasonable compensation for the damage.

²⁹**[7. Acquisition of land containing antiquities.—**If the Director General has reasonable grounds to believe that any land contains any antiquity, he may request the Government to acquire such land under the Land Acquisition Act 1894 (I of 1894) and such acquisition shall be deemed to be acquisition for public purpose.]

8. Purchase, taking lease, etc., of antiquity.— (1) The ³⁰[Director-General] may, with the previous sanction of the ³¹[Government], purchase, or take lease or accept a gift or bequest of, an antiquity.

(2) The ³²[Director-General] may receive voluntary contributions and donations for the acquisition, preservation or restoration of antiquities and may make suitable arrangements for the management and application of the fund created by such contributions and donations:

²⁵Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

²⁶Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²⁷Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²⁸Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

²⁹Substituted by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.7.

³⁰Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

³¹Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

³²Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

Provided that a contribution or donation made for any specified purpose shall not be applied to any purpose other than that for which it has been made.

9. Right of pre-emption in case of a sale of antiquity.— (1) Where the ³³[Director-General] receives any information or otherwise has the knowledge that any antiquity or any immovable property containing an antiquity is offered for sale or is about to be sold, he may, with the approval of the ³⁴[Government], exercise the right of pre-emption with respect to such antiquity or property and, if he intends to exercise the right, shall give to the person competent to sell a notice in writing accordingly.

(2) If the ³⁵[Director-General] does not exercise with respect to any antiquity or property the right of pre-emption within a period of three months from the date of notice given under sub-section (1), the antiquity or property may be sold to any person after the expiry of the said period and a notice of such sale shall be given to the ³⁶[Director-General].

(3) Save as provided in sub-section (2), no antiquity or property in respect of which a notice under sub-section (1) has been given shall be sold to any person.

(4) All sales in contravention of sub-section (3) shall be void and the antiquity or property so sold shall be forfeited to the ³⁷[Government].

10. Declaration of protected antiquities.— (1) The ³⁸[Government] may, by notification in the official Gazette, declare any antiquity to be a protected antiquity for the purposes of this Act.

(2) A copy of a notification under sub-section (1) shall be served on the owner of the antiquity and; in the case of an immovable antiquity, shall also be fixed up in a conspicuous place of or near the antiquity.

(3) A notification under sub-section (1) shall, unless it is cancelled by the ³⁹[Government], be conclusive evidence of the fact that the antiquity to which it relates is a protected antiquity for the purposes of this Act.

(4) Antiquities declared to be protected antiquities under the Antiquities Act, 1968 (XIV of 1968), and ancient monuments deemed to be protected antiquities for the purposes of that Act, shall be deemed to be protected antiquities for the purposes of this Act.

³³Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

³⁴Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

³⁵Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

³⁶Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

³⁷Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

³⁸Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

³⁹Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

11. Representation against declaration of protected antiquities.– (1) The owner of an antiquity to which a notification under section 10 relates, or any person having any right or interest in the antiquity, may, within three months of the service of a copy of the notification, make a representation in writing to the ⁴⁰[Government] against the notification.

(2) Upon the receipt of a representation under subsection (1) against a notification, the ⁴¹[Government], after giving the person making it an opportunity of being heard and after consultation with the Advisory Committee, may, if it is satisfied that there are good and sufficient reasons for objection to the notification, cancel it.

12. The guardianship of antiquity by agreement.– (1) The owner of any immovable antiquity or protected antiquity may, by an agreement in writing constitute the Director the guardian of such antiquity and the ⁴²[Director-General] may, with the previous sanction of the ⁴³[Government], accept such guardianship.

(2) Where the ⁴⁴[Director-General] has accepted the guardianship of an antiquity in pursuance of an agreement under subsection (1), the owner shall, except as expressly provided in this Act and in the agreement, have the same right, title and interest in and to the antiquity as if the ⁴⁵[Director-General] had not been constituted the guardian thereof.

(3) An agreement under this section in relation to an antiquity may provide for all or any of the following matters, namely:–

- (a) the maintenance of the antiquity;
- (b) the custody of the antiquity and the duties of any person who may be employed to watch it;
- (c) the restrictions upon the right of the owner to alienate, destroy, remove, alter or deface the antiquity or to build on or near the site of the antiquity;
- (d) the facilities of access to be allowed to the public;
- (e) the facilities to be allowed to persons deputed by the owner or the ⁴⁶[Director-General] for inspection and maintenance of the antiquity;
- (f) the expenses to be incurred in connection with the preservation of the antiquity and payment of such expenses if incurred by the owner;

⁴⁰Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁴¹Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁴²Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁴³Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁴⁴Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁴⁵Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁴⁶Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

- (g) compensation to be paid for any loss sustained by the owner or occupier or any other person as a result of the enforcement or observance of the agreement; and
- (h) any other matter connected with the custody, management and preservation of the antiquity.

(4) The terms of an agreement under this section may be altered from time to time with the sanction of the ⁴⁷[Government] and with the consent of the owner.

(5) An agreement under this section in relation to an antiquity may be terminated upon six months' notice in writing given by the ⁴⁸[Director-General], with the previous sanction of the ⁴⁹[Government], to the owner or by the owner to the ⁵⁰[Director-General].

13. Purchasers at certain sales and persons claiming through owner bound by agreement entered into by owner.— Notwithstanding anything contained in any other law for the time being in force, every person who, at a sale for the recovery of arrears of land revenue or any other public demand, purchases any land or property, or any right or interest in land or property, which contains, or in which is situated an antiquity in respect of which an agreement under section 12 subsists, and every person claiming any title to any antiquity from, through or under an owner who entered into such agreement, shall be bound by such agreement.

⁵¹**[13A. Ownership of buried antiquities.**— Notwithstanding anything contained in any other law for the time being in force, the ownership of all buried antiquities shall vest in the ⁵²[Government].]

14. Application of endowment for maintenance and preservation of antiquity.— (1) Where any endowment has been created for the maintenance and preservation of any protected antiquity, or for that purpose among others, and the owner or other person competent in this behalf fails in the proper application of such endowment and, when proposed to him by the ⁵³[Director-General], refuses or fails to enter into an agreement under section 12, the ⁵⁴[Director-General] may, for the proper application of such endowment or part thereof, institute a suit in the Court of the District Judge, or, where the estimated cost of maintaining and preserving the

⁴⁷Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁴⁸Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁴⁹Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁵⁰Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁵¹Inserted by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.6.

⁵²Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁵³Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁵⁴Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

antiquity does not exceed one thousand rupees, make an application to the District Judge.

(2) On the hearing of an application under sub-section (1), the District Judge may summon and examine the owner and any person whose evidence appears to him necessary, and may pass an order for the proper application of the endowment or of any part thereof, and any such order may be executed as if it were the decree of a Civil Court.

15. Compulsory acquisition of protected immovable antiquity.—⁵⁵[(1) If the Director General apprehends that a protected immovable antiquity is in danger of being destroyed, injured or allowed to fall into decay, he may, request the Government to acquire such antiquity under the Land Acquisition Act 1894 (I of 1894) and such acquisition shall be deemed to be acquisition for public purpose.]

(2) The power of compulsory acquisition under sub-section (1) shall not be exercised in the case of—

- (a) any antiquity which or any part of which is periodically used for religious observances; or
- (b) any antiquity which is the subject of a subsisting agreement under section 12⁵⁶ [.]
- (c) ⁵⁷[* * * * *]

16. Compulsory acquisition of movable antiquities.— (1) If the⁵⁸ [Government] is of the opinion that any movable antiquity should, by reason of its cultural, historical or archaeological importance, be acquired for the purpose of preservation, the⁵⁹ [Government] may, by order in writing addressed to the owner, acquire such antiquity:

Provided that the power to acquire under this sub-section shall not extend to—

- (a) any image or symbol in actual use for the purpose of any religious observance; or
- (b) anything which the owner desires to retain on any reasonable ground personal to himself or to any of his ancestors or to any member of his family.

(2) When an order under sub-section (1) has been served upon the owner, the antiquity to which the order relates shall immediately vest in the⁶⁰ [Government] free from all encumbrances and the owner shall be entitled to compensation, the

⁵⁵Substituted by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.6.

⁵⁶Substituted for “; or” by the Antiquities (Amendment) Act, 1976 (VI of 1976), s.2 (w.e.f. 2.8.1976)

⁵⁷Omitted by the Antiquities (Amendment) Act, 1976 (VI of 1976), s.2 (w.e.f. 2.8.1976)

⁵⁸Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁵⁹Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁶⁰Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

amount of which shall be determined in the manner, and in accordance with the principles, hereinafter set out, that is to say,—

- (a) where the amount of compensation can be fixed by agreement, it shall be paid in accordance with such agreement;
- (b) where no such agreement can be reached, the ⁶¹[Government] shall appoint as arbitrator a person who has been, or is qualified for appointment as, a Judge of a High Court;
- (c) at the commencement of the proceedings before the arbitrator, the ⁶²[Government] and the person to be compensated shall state what in their perspective opinions is a fair amount of compensation;
- (d) the arbitrator in making his award shall have regard to the price which the antiquity is likely to fetch on a sale in open market between a buyer and a seller independent of each other;
- (e) an appeal shall lie to the High Court against any award of an arbitrator except in case where the amount thereof does not exceed an amount prescribed in this behalf by rules; and
- (f) save as provided in this sub-section and in any rules made in this behalf, nothing in any law for the time being in force shall apply to arbitration under this sub-section.

17. Protection of place of worship from misuse, etc.— (1) A place of worship or shrine, being an antiquity maintained by the ⁶³[Government], shall not be used for any purpose inconsistent with its character.

(2) A place of worship or shrine in respect of which the ⁶⁴[Director-General] has accepted guardianship in pursuance of an agreement under section 12 shall, unless the agreement otherwise provides, be maintained by the person in whom it is vested or, if there is no such person, by the ⁶⁵[Government].

(3) Where any antiquity in respect of which the ⁶⁶[Government] has acquired any right under this Act or the ⁶⁷[Director-General] has accepted guardianship is periodically used for religious worship or observance by any community, the ⁶⁸[Director-General] shall provide for the protection of such antiquity from pollution or desecration.

⁶¹Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁶²Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁶³Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁶⁴Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁶⁵Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁶⁶Substituted for the words “Federal Government” by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁶⁷Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁶⁸Substituted for the word “Director” by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

- (a) by prohibiting the entry therein , except in accordance with the conditions prescribed with the concurrence of the person in charge of the antiquity, of any person not entitled so to enter by the religious usages of the community by which the antiquity is used; and
- (b) by taking with the concurrence of the person in charge of the antiquity such other action as he may think necessary for the purpose.

(4) Whoever contravenes the provisions of sub-section (3) shall be punishable with imprisonment for a term which may extend to three months, or with fine, or with both.

18. Restriction on use of protected immovable antiquity.— A protected immovable antiquity shall not be used for any purpose inconsistent with its character or for a purpose other than that directly related to its administration and preservation.

19. Prohibition of destruction, damage, etc., of protected antiquities.— (1) No person shall, except for carrying out the purposes of this Act, destroy, break, damage, alter, injure, deface or mutilate or scribble, write or engrave any inscription or sign on, any antiquity or take manure from any protected antiquity.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(3) The Court trying an offence under sub-section (2) may direct that the whole or any part of the fine recovered shall be applied in defraying the expenses of restoring the antiquity to the condition in which it was before the commission of the offence.

20. Restriction on repairs, renovation, etc., of protected immovable antiquity.— (1) The owner of a protected immovable antiquity shall not make any alteration or renovation in, or addition in, or addition to, the antiquity:

Provided that he may, with the permission of the ⁶⁹[Director-General], make minor adjustments considered necessary for the day to day use of the antiquity:

Provided further that the work for which permission has been given shall be carried out under the supervision of the ⁷⁰[Director-General] or a person authorized by him in this behalf.

(2) Whoever contravenes the provisions of sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to one year, or with fine, or with both.

21. Direction to the owner to take measure for preservation of antiquity.— (1) Where the ⁷¹[Director-General] considers that any antiquity is not being preserved or

⁶⁹Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷⁰Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷¹Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

conserved properly by its owner, the ⁷²[Director-General] may, be order in writing, direct the owner to take such measures for its proper preservation and conservation, and within such time, as may be specified in the order.

(2) If the owner fails to take the measures specified in the order referred to in sub-section (1), the ⁷³[Director-General] may take all such measures in respect of the antiquity and the expenses incurred for the purpose shall be recoverable from the owner as an arrear of land revenue.

22. Execution of development schemes and new constructions in proximity to immovable antiquity.— Notwithstanding anything contained in any other law for the time being in force, no development plan or scheme or new construction on, or within a distance of two hundred feet of, a protected immovable antiquity shall be undertaken or executed except with the approval of the ⁷⁴[Director-General].

23. Prohibition of bill posting, neon signs, other kinds of advertisements, etc.— (1) No person shall put any neon signs or other kinds of advertisement, including bill posting, commercial signs, poles or pylons, electricity or telephone cables and television aerals, on or near any protected immovable antiquity.

(2) Whoever contravenes the provision of sub-section (1) shall be punishable with rigorous imprisonment for term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both.

(3) The Court trying an offence under sub-section (2) may direct that the whole or any part of the fine recovered shall be applied in defraying the expenses of restoring the antiquity to the condition in which it was before the commission of the offence.

24. Penalty for counterfeiting etc., of antiquity.— (1) Whoever counterfeits, or commits forgery in respect of any antiquity with intent to commit fraud or knowing to be likely that fraud will thereby be committed, or causes anything to appear like, or to be believed to be, an antiquity with intent to cause wrongful gain to one person or wrongful loss to another person shall be punishable with imprisonment for a term which may extend to six months or with fine, or with both.

(2) The Court trying an offence under sub-section (1) may direct that anything the making or forgoing of which has constituted such offence shall stand forfeited to the ⁷⁵[Government].

25. Dealing in antiquities.— (1) No person shall deal in antiquities except under, and in accordance with, a licence granted by the ⁷⁶[Director-General].

⁷²Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷³Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷⁴Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷⁵Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁷⁶Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

(2) Every dealers shall maintain a register in such manner and form as the⁷⁷[Director-General] may prescribe from time to time.

(3) A licence granted under sub-section (1) may be cancelled by the⁷⁸[Director-General] for the breach of any condition of the licence.

(4) The⁷⁹[Director-General] may, with a view to securing compliance with the provisions of this section,—

- (a) require any person dealing in antiquities to give such information is his possession with respect to any business carried on by him as the⁸⁰[Director-General] may demand;
- (b) inspect or cause to be inspected any book, register or other document belonging to or under the control of any person dealing in antiquities; and
- (c) enter and search, or authorize any officer subordinate to him to enter and search, any premises and seize, o authorize any such officer or a police officer, to seize, any antiquity in respect of which he has reason to believe that a contravention of any provision of this section or a breach of any condition of the licence has been committed.

(5) Whoever contravenes the provisions of this section shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(6) The Court trying an offence under sub-section (5) may direct that any antiquity in respect of which the offence has been committed shall stand forfeited to the⁸¹[Government].

26. Export of antiquities.— (1) No person shall export any antiquity except under a licence to be granted by the⁸²[Director-General]—

- (a) for the temporary export of antiquities for the purpose of exhibition, examination or treatment for preservation; or
- (b) in accordance with agreements with foreign licences for archaeological exploration and excavations within the term of their licences; or
- (c) for the export of antiquities which are not of a unique nature in exchange for antiquities of any foreign country.

(2) All antiquities the export of which is prohibited under sub-section (1) shall be deemed to be goods of which the export has been prohibited under section

⁷⁷Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷⁸Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁷⁹Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁸⁰Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁸¹Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸²Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

16 of the Customs Act, 1969 (IV of 1969), and all the provisions of that Act shall have effect accordingly, except that the antiquity in respect of which the provisions of that Act have been contravened shall be confiscated where confiscation is authorized under that Act.

27. Traffic in movable antiquities.— (1) If the ⁸³[Government] apprehends that movable antiquities in any place in ⁸⁴[Punjab] are being sold or removed to the detriment of ⁸⁵[Punjab], it may, by notification in the official Gazette, prohibit or restrict the movement of any such antiquity or any class of such antiquities for such period and between such places in ⁸⁶[Punjab] as may be specified in the notification, except with, and in accordance with the term of, the written permission of the ⁸⁷[Director-General].

(2) Whoever contravenes the provisions of a notification under sub-section (1) shall be punishable with rigorous imprisonment for a term which may extend to three years, or with fine, or with both.

(3) The Court trying an offence under sub-section (2) may direct that any antiquity in respect of which the offence has been committed shall stand forfeited to the ⁸⁸[Government].

28. Regulation of mining, quarrying, etc.— (1) If the ⁸⁹[Government] is of the opinion that for the purpose of protecting or preserving any immovable antiquity it is necessary so to do, it may, by notification in the official Gazette, prohibit or restrict, within such area as may be specified therein, mining, quarrying, excavating, blasting and other operations of a like nature, or the movement of heavy vehicles, except under and in the accordance with the terms of a licence granted by the ⁹⁰[Director-General] and rules, if any, made this behalf.

(2) Any owner or occupier of land who sustains any loss by reason of any prohibition or restriction by a notification under sub-section (1) shall be paid reasonable compensation for such loss.

(3) Whoever contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to one year, or with fine or with both.

⁸³Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸⁴Substituted for the word "Pakistan" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸⁵Substituted for the word "Pakistan" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸⁶Substituted for the word "Pakistan" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸⁷Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁸⁸Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁸⁹Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁹⁰Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

29. Prohibition of archaeological excavation or exploration without licence.—

(1) No person shall make on any land any excavation or exploration for archaeological purposes, or unearth or attempt to unearth or make any digging in any land or site for taking out antiquities, except under, and in accordance with, a licence granted by the ⁹¹[Director-General].

(2) A licence under sub-section (1) in respect of any land shall not be granted to any person other than the owner of the land except in accord and with the term of an agreement with the owner, and any such agreement may provide for—

- (a) the restriction of the owner's rights in respect of the use and occupation of such land;
- (b) the compensation or any other consideration to be paid to the owner; and
- (c) any other matter connected with the use of the land for the purpose of such excavation.

(3) A licence under sub-section (1) shall not be refused to an owner if he undertakes to carry on the excavation in such manner that it will not result in the loss of archaeological or historical material which in the national interest should be preserved.

(4) Whoever contravenes the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

(5) The Court trying an offence under sub-section (4) may direct that any object found in the course of an excavation exploration, unearthing or digging constituting such offence shall stand forfeited to the ⁹²[Government].

30. Prohibition of making copies of protected antiquities without licence.—

No person shall, for any commercial purpose, make a cinematograph film of any protected antiquity or any part thereof except under, and in accordance with, a licence granted by the ⁹³[Director-General].

31. Right of access to protected immovable antiquities.— Subject to the provisions of this Act and the rules, the public shall have a right of access to any immovable protected antiquity maintained by the ⁹⁴[Government] under this Act.

32. Penalty.— A contravention of any provision of this Act or the rules shall, where no punishment has been specification provided, be punishable with rigorous imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

⁹¹Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁹²Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

⁹³Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁹⁴Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

33. Jurisdiction to try offences.— No court inferior to that of a Magistrate of the first class shall take cognizance of or try an offence punishable under this Act.

34. Power to arrest without warrant.— ⁹⁵[(1) The ⁹⁶[Director-General] or any officer duly empowered by him in this behalf may arrest without warrant any person against whom reasonable ground to believe that he has committed an offence under section 5-A, 19, 25, 26, 27, or 29.]

(2) Subject to sub-section (3), every person arrested under sub-section (1) shall be taken forthwith to the officer-in-charge of the nearest police station.

(3) The ⁹⁷[Director-General] or the officer arresting any person, or the officer-in-charge of a police station to whom any person is taken under subsection (2), shall either admit him to bail to appear before the Magistrate having jurisdiction or have him taken in custody before such Magistrate.

35. Confiscated antiquities to be made over to ⁹⁸[Director-General].— Any antiquity which is confiscated or forfeited under this Act shall be made over to the ⁹⁹[Director-General] for custody, preservation and protection.

36. Indemnity.— No suit, prosecution or other legal proceeding shall lie against Government or any person for anything which is in good faith done or intended to be done under this Act.

37. Power to make rules.— (1) The ¹⁰⁰[Government] may, after previous publication, make rules for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for—

- (a) the form and the conditions of any licence granted under this Act;
- (b) regulation of admission of the public to any immovable protected antiquity;
- (c) the levy of fees for the grant of any licence under this Act and for admission of the public to an immovable protected antiquity;
- (d) the procedure to be followed in arbitrations, the principles to be followed in apportioning the costs of proceedings before the arbitrator and on appeal, and the maximum amount of an award against which no appeal shall lie, under sub-section (2) of section 16;

⁹⁵Substituted by the Antiquities (Amendment) Ordinance, 1978 (XLII of 1978); and published in the Gazette of Pakistan (Extraordinary), Part I, dated 5.11.1978, s.3.

⁹⁶Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁹⁷Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁹⁸Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

⁹⁹Substituted for the word "Director" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.2.

¹⁰⁰Substituted for the words "Federal Government" by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.2.

(e) such other matters as are or may be required for carrying into the provisions of this Act.

(3) Rules made under this section may provide that the contravention of any of the provisions thereof or of any condition of a licence granted under this Act shall be punishable with fine which may extend to ¹⁰¹[two hundred thousand] rupees.

¹⁰²[38. *Repeal.*— * * * * *]

¹⁰¹Substituted for the words "five hundred" by the Antiquities (Amendment) Act, 1992 (XXI of 1992); and published in the Gazette of Pakistan (Extraordinary), dated 16.9.1992, pages 553-555, s.8.

¹⁰²Omitted by the Antiquities (Amendment) Act 2012 (XII of 2012); and published in the Punjab Gazette (Extraordinary), dated 11.2.2012, pages 40141-40142, s.7.